

# Anoop Kumar Mishra v. State of U.P.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 15 February 2023 · WRIT - C No. 1217 of 2023 · **Sent to Executive Engineer under para 6.4 for a reasoned order.**

## HEADNOTE

A billing dispute over reinstatement of a domestic connection is for the Competent Authority under paragraph 6.4 of the Electricity Supply Code. The writ was disposed of by directing the consumer to approach the Executive Engineer within two weeks with an application and an undertaking to deposit the dues, and by directing that officer to pass a reasoned speaking order in accordance with law within six weeks. The Court did not restore supply or adjust the bill.

## FACTUAL SUMMARY

Anoop Kumar Mishra approached the Lucknow Bench for a mandamus directing the licensee officers to reinstate his domestic electricity connection. He also asked that his representation be decided by adjusting the bill amount already deposited, and that no electricity charges be recovered for the period the supply remained disconnected. The pleadings showed a dispute over the bill. The State appeared through the Standing Counsel and the licensee officers through their counsel.

## HOLDING-UNITS

### INTERPLAY · UP-2005::6.4

billing dispute before competent authority

#### HOLDING

A billing dispute over a domestic connection is to be solved by the Competent Authority under paragraph 6.4 of the Electricity Supply Code. The writ is disposed of by directing the consumer to approach the Executive Engineer of the division concerned within two weeks with his application and an undertaking, if any, offering to deposit the amount fallen due, and by directing that officer to consider the matter sympathetically and pass a reasoned speaking order in accordance with law within six weeks. The Court does not itself reinstate the connection or adjust the bill. ¶ 3-4

## PRINCIPLE TAGS

**art-226-no-factual-enquiry-assessment-relegated-clause-6.1-or-6.4**

The Court treated the prayers for reinstatement and bill adjustment as a billing dispute for the Competent Authority under paragraph 6.4, and sent the petitioner to the Executive Engineer for a reasoned order in accordance with law without enquiring into the bill or directing restoration. ¶ 3-4

## NOT DECIDED — NEGATIVE AUTHORITY

**NOT DECIDED — WHETHER THE DOMESTIC CONNECTION MUST BE REINSTATED, THE DEPOSITED BILL ADJUSTED, AND CHARGES LEVIED FOR THE DISCONNECTION PERIOD.**

Left to the Executive Engineer to decide by a reasoned speaking order. ¶ 2-4